

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF SUFFOLK

-----X DIANE C. DESOUSA and THOMAS E. DESOUSA, Plaintiffs, -against- RICHARD A. CALVAGNO II and PATRICK J. KARCHER, Defendants, -----X	Index No: 600371/2021 AFFIDAVIT IN SUPPORT OF DEFENDANT PATRICK J. KARCHER'S MOTION FOR SUMMARY JUDGMENT
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STATE OF NEW YORK)

) ss:

COUNTY OF SUFFOLK)

PATRICK J. KARCHER, being duly sworn, deposes and says:

1. I am named as a defendant in this action. I am fully familiar with the facts and circumstances set forth herein based upon my dealings with co-defendant Richard A. Calvagno II ("Calvagno").

2. I respectfully submit this Affidavit in support of my motion for an Order pursuant to CPLR § 3212(b), granting me summary judgment dismissing Plaintiffs Diane C. DeSousa's and Thomas E. DeSousa's (collectively, "Plaintiffs") Summons and Verified Complaint, dated January 8, 2021 (the "Verified Complaint") in its entirety as alleged against me.

3. I have no knowledge of Plaintiffs' allegations against Calvagno. I have known Calvagno for nearly 20 years. In or about January 2017, I co-signed Calvagno's mortgage to assist his purchase of the residence located at 320 Grand Central Avenue, Amityville, New York 11701 (the "Calvagno Residence"). I am advised that the Calvagno Residence is directly across the street from Plaintiffs' residence located at 329 Grand Central Avenue, Amityville, New York 11701 (the "Plaintiffs' Residence").

4. I have never resided at the Calvagno Residence. I have no control over Calvagno's use of his residence, his property, and/or his automobiles.

5. I was never deposed in this matter. I do not believe I have ever met the Plaintiffs.

WHEREFORE, for the following reasons, as well as the reasons set forth in the accompanying Affirmation of Maxwell Rubin, it is respectfully requested that the instant motion for summary judgment be granted in its entirety.

MAXWELL JON RUBIN
Notary Public, State of New York
No. 02RU6266359
Qualified in Nassau County
Commission Expires July 23, 2016

Patrick Karcher
PATRICK KARCHER

Sworn to before me this

28th day of May 2024